Ishaan Luthra vs The State Nct Of Delhi And Anr on 24 September, 2025

Author: Neena Bansal Krishna

Bench: Neena Bansal Krishna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 3082/2025
ISHAAN LUTHRA
Through: Mr
Ku

versus

THE STATE NCT OF DELHI AND ANR .....Respon
Through: Mr. Utkarsh, APP for the Stat
CORAM:
HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA
ORDER

% 24.09.2025

1. First Bail Application under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (hereinafter referred to as 'B.N.S.S.') has been filed on behalf of the Petitioner, Ishaan Luthra for grant of Regular Bail in FIR No. 33/2023 under Section 420/120-B of the Indian Penal Code, 1860 (hereinafter referred to as 'IPC') registered at Police Station Cyber Outer North Bawana, Delhi.

2. It is submitted in the Bail Application that his Regular Bail has been dismissed by the learned Trial Court on 29.05.2025. The Applicant is in judicial custody since 30.10.2023 i.e. for around two years. He was illegally arrested on the said date, without following due procedure under Section 41A of the Code of Criminal Procedure, 1973 (hereinafter referred to as 'Cr.PC') as also laid down by the Apex Court in Arnesh Kumar vs. State of Bihar. The Notice under Section 41A of Cr.PC was given merely as a formality with no acknowledgement or signatures of the Applicant. He was This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/09/2025 at 22:54:46 forcibly picked up from his house and was forced to sign the arrest memo. The investigations are already complete and the Charge-Sheet stands filed. No purpose would be served in keeping the Applicant in judicial custody.

3. He is a young man of 25 years and is vulnerable and at risk of victimization in custody.

4. Reliance has placed on Manish Sisodia vs. Directorate of Enforcement (2024 INSC 595.

5. It is submitted that the main accused Sayed Daud Haji Malang Kamlasha, who is based in Dubai and deals in Cryptocurrency, in whose account all the fraud money was transferred and Sayed Tajuddin Mujawar, brother-in-law of the main accused, in whose account, money was further transferred, have only been interrogated but were not arrested. Multiple suspects including Sakib, Salim, Shaikh, Anis Najir Pathan and Mazhar M. Inamdar, were examined during the investigations but were not arrested.

6. The Applicant is an innocent person and the role of the Applicant is merely that he had received only Rs.2,00,000/- allegedly out of total fraud amount. The co-accused, Dharmapal has already been granted Anticipatory Bail. The Complainant has already been examined as PW-1 and discharged on 30.01.2025.

7. It is further submitted that the Applicant had always co-operated with the Investigating Agency and there is no chance of his absconding as the passport is already seized.

8. Learned Counsel for the Petitioner has placed reliance on Muhammad Jamil vs. State of Haryana, Neutral Citation No.2025: PHHC: 038828; Sanjeev Kumar & Ors. vs. State of Himachal Pradesh, Cr.M.P. (M) Nos. 659 and 736/2016; Narendra Singh and Anr. vs. State of M.P., This is a digitally signed order.

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2023/DHC/000184; Moti Ram vs. State of M.P., (1978) 4SCC 47.

9. It is further submitted that he belongs to a respectable family and has never been involved in commission of any offence. No incriminating articles were recovered from his possession. There is no direct connection and the Case rests solely on the documentary evidence, which is already on judicial record. He undertakes to abide by any terms and conditions that may be imposed. A prayer is, therefore, made that he may be granted Regular Bail.

10. No Status Report has been filed in the present Case.

11. Status Report had been filed before the learned Session Court wherein as per the Reply filed by the Additional DCP, accused Sayed Tajuddin Mujawar was interrogated, who claimed that the alleged amount was transferred in his Bank Account by his brother-in-law, Sayed Daud Haji Malang Kamlasha, who worked in Dubai and deals in cryptocurency USDT to one ismail via Trust Wallet and received

the payment in Indian Bank Accounts including of Sayed Tajuddin Mujawar. During investigations, multiple suspects were examined. The money trail was still being analysed and the Investigations were pending against the other suspects. Submissions heard and the record perused.

12. The case of the Prosecution is that there was a cyber fraud wherein the involvement of the Applicant was for Rs.14,00,000/-, but admittedly only Rs.2,00,000/- were transferred in his Account. The Charge-Sheet has already been filed. The investigations against the Applicant stands concluded and the Charges have been framed against him. The Complainant This is a digitally signed order.

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13. Considering the totality of circumstances, the Applicnt/Accused is granted Regular Bail, on the following terms and conditions:

a) The Petitioner/Accused shall furnish a personal bond of Rs.35,000/- and one surety of the like amount, subject to the satisfaction of the learned Trial Court.

b) The Petitioner/Accused shall appear before the Court as and when the matter is taken up for hearing;

c) The Petitioner/Accused shall provide his mobile number/changed mobile number to the IO concerned which shall be kept in working condition at all times;

d) The Petitioner/Accused shall not indulge in any criminal activity and shall not communicate or intimidate the witnesses.

e) In case the Petitioner/Accused changes his residential address, the same shall be intimated to learned Trial Court and to the concerned I.O.

14. The copy of this Order be communicated to the concerned Jail Superintendent, as well as, to the learned Trial Court.

15. The Bail Application is accordingly disposed of.

NEENA BANSAL KRISHNA, J SEPTEMBER 24, 2025/RS This is a digitally signed order.

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